

25NWCV03884 25NWCV03884

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Case Number: 25NWCV03884 Hearing Date: August 18, 2026 Dept: D

ISAMAR CORTES

GUZMAN V. VOLKSWAGEN GROUP OF AMERICA, INC., ET AL.

CASE NO.: 25NWCV03884

HEARING: 08/18/2026 @

9:30 a.m.

#15

TENTATIVE ORDER

The hearing on Plaintiff Isamar Cortes Guzman's Motion to Compel

Further Responses to Request for Production of Documents, Set One, is CONTINUED

to November 19, 2026, at 9:30am. The

joint separate statement must be filed on or before November 12, 2026. If the parties fail to file a joint separate

statement by that date, the Court will presume the issues in the Motion are

moot and take the matter off-calendar.

Moving party to give notice.

Plaintiff Isamar Cortes Guzman (Plaintiff)

move for an order to compel Defendant Volkswagen Group of America, Inc.'s (Defendant)

further responses.

Background

This is a lemon law action. On October 31, 2025, Plaintiff filed the

operative Complaint against Defendants Volkswagen Group of America, Inc., McKenna Motors Cerritos, Inc., and Does 1 through 10, inclusive, asserting four causes of action: (1) Violation of Song-Beverly Act—Breach of Express Warranty; (2) Violation of Song-Beverly Act—Breach of Implied Warranty; (3) Violation of the Song-Beverly Act Section 1793.2; and (4) Negligent Repair.

On January 27, 2026, Plaintiff propounded Request for Production, Set One, (RFPD) on Defendant. On March 2, 2026, Defendant served responses to Plaintiff's RFPD, which contained only objections.

On June 2, 2026, Plaintiff filed the instant motion.

On August 5, 2026, Defendant filed an opposition.

On August 11, 2026, Plaintiff filed a reply.

Legal Standard

Code of Civil Procedure section 2031.310 allows a party to file a motion compelling further answers to document requests if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).)

To establish good cause, the burden is on the moving party to show: (1) relevance to the subject matter and (2) specific facts justifying discovery. (Glenfed Develop. Corp. v. Sup. Ct. (National Union Fire Ins. Co. of Pittsburgh, Penn.) (1997) 53 Cal.App.4th 1113, 1117; see also Kirkland v. Sup. Ct. (Guess?, Inc.) (2002) 95 Cal.App.4th 92, 98.)

Meet and Confer

A motion to compel further responses to requests for documents shall be accompanied with a meet and confer declaration. (Code Civ. Proc., § 2031.310, subd. (b).)

The Court describes the parties' lack of meet and confer efforts below.

Analysis

Plaintiff moves to compel further responses to RFPD Nos. 1 through 31. The RFPDs seek documents relating to: (1) Plaintiff's own vehicle; (2) Defendant's warranty and replacement/repurchase policies, procedures, and practices; and (3) Defendant's knowledge of the same or similar defects in other vehicles of the same year, make, and model as the Subject Vehicle. (Hozven Decl., ¶ 11, Ex. 2.) Plaintiff asserts that Defendant's initial responses are not Code-compliant and consist only of objections. (Id. at ¶ 12, Ex. 3.)

On March 19, 2026, Plaintiff's counsel sent a meet and confer letter regarding the Defendant's responses. (Hozven Decl., ¶ 15, Ex. 5; McConnell Decl., ¶ 5.) On April 6, 2026, Defendant served its supplemental responses. (McConnell Decl., ¶ 6, Ex. C.) On April 7, 2026, Plaintiff's counsel sent Defense counsel another meet and confer letter regarding Defendant's responses. (Hozven Decl., ¶ 19, Ex. 6; McConnell Decl., ¶ 7.) On April 8, 2026, Defense counsel sent Plaintiff's counsel a letter proposing to meet and confer by telephone. (Hozven Decl., ¶ 20, Ex. 7; McConnell Decl., ¶ 8, Ex. D.) On May 21, 2026, Plaintiff's counsel emailed Defense counsel regarding Defendant's further responses. (Hozven Decl., ¶ 21, Ex. 8; McConnell Decl., ¶ 10, Ex. E.) In that email, Plaintiff's counsel proposed an extension under which Defendant would serve further responses and supplemental documentation by June 26, 2026, and Plaintiff would have until July 17, 2026, to file a motion to compel, if necessary. (Hozven Decl., ¶ 21, Ex. 8.)

On May 22, 2026, Plaintiff's counsel called Defense counsel but was directed to voicemail. (Hozven Decl., ¶ 22, Ex. 8; McConnell Decl., ¶ 10.) Plaintiff's counsel thereafter sent a follow-up email. (Ibid.) Plaintiff's counsel states that no response followed. (Hozven Decl., ¶ 22.)

In opposition, Defendant argues that Plaintiff failed to engage in good faith discussion, did not meet and confer in person or by phone, and did not attempt to narrow the dispute before filing the instant motion. Defendant noted that Plaintiff's counsel's April 7, 2026 letter incorrectly stated that

Defendant had not yet served verified responses and document production, which Defense counsel alerted Plaintiff's counsel of in their April 8, 2026 letter. Further, Defendant argues Plaintiff prematurely filed this motion, without allowing the parties to make a good faith effort to resolve the issues beforehand.

Further, Defendant highlights that Plaintiff's contention that Defendant has failed to produce documents is unfounded. According to Defendant, it has already produced Exhibit A-I in response to RFPDs Nos. 1-11, 13, 14, 24, and 31. As to RFPD No. 12, Defendant properly objected and responded that no responsive documents were in Defendant's possession, custody or control. Further, Defendant also produced its policies and procedures regarding handling customer complaints and compliance with the Song-Beverly Act pursuant to the stipulated protective order entered by the Parties, rendering RFPD Nos. 15-23 and 25-29 moot.

In reply, Plaintiff argues that Defendant's contention that Plaintiff failed to meet and confer in good faith ignores Plaintiff's multiple written meet-and-confer efforts and attempted telephone contact regarding Defendant's allegedly deficient responses and production. Plaintiff further argues that although Defendant served supplemental documents on August 5, 2026, Defendant's production remains materially incomplete, and its supplemental responses remain non-Code-compliant. Plaintiff contends numerous categories of responsive documents remain outstanding. Specifically, Defendant has still not produced: (1) SAGA warranty claim submissions responsive to Request Nos. 3, 4, 9, 10, 11, 12, and 14; (2) training materials responsive to Request Nos. 15 through 22, other than a two-page document concerning Defendant's policy for reviewing buyback requests; (3) substantially similar complaints responsive to Request No. 30; (4) GFF Logs or Diagnostic Logs responsive to Request Nos. 3, 4, 7, 9, and 10; and (5) technical service bulletins and recall notices responsive to Request Nos. 8 and 31.

Plaintiff also argues that, in its April 6, 2026 supplemental responses, Defendant represented that Exhibits D, F, and G "will be produced at a later date," but those documents have still not been produced. Plaintiff contends Exhibit D appears to refer to GFF Logs, Exhibit G appears to refer to technical service bulletins and recall notices, and Defendant's responses do not identify

what documents comprise Exhibit F.

“The Discovery Act requires that, prior to the initiation of a motion to compel, the moving party declare that he or she has made a serious attempt to obtain ‘an informal resolution of each issue.’ [Citations.] This rule is designed ‘to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order. . .’ [Citations.] This, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes. . . [T]he law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1435, 1439.)

The Court finds that Plaintiff failed to adequately meet and confer in good faith prior to filing the Motion. Although Plaintiff sent meet-and-confer communications and attempted to contact Defense counsel by telephone, the record reflects that Defendant served supplemental responses on April 6, 2026, and responded to Plaintiff’s April 7, 2026 letter the following day. Defendant also proposed meeting and conferring by telephone. Plaintiff thereafter waited until May 21, 2026, to raise the asserted remaining deficiencies and followed up the next day before filing the Motion. Under these circumstances, the Court finds that Plaintiff did not make a sufficient effort to meaningfully discuss and attempt to narrow the remaining disputes before seeking Court intervention.

Based on the parties’ briefing, the Court finds that further meet and confer efforts are warranted regarding: (1) whether Defendant’s supplemental responses comply with the Code of Civil Procedure; and (2) the scope of any remaining document production, including the specific categories and sources identified by Plaintiff as potentially containing responsive documents.

Therefore, counsel is ordered to make further efforts to resolve the issues presented. If, after exhausting those efforts, court intervention is needed, counsel may appear and argue the merits on the continued hearing date. If counsel is unable to informally resolve their discovery disputes, then counsel is instructed to submit a joint separate statement explaining the parties’ meet and confer efforts and outlining, in detail, the remaining disputed issues for which a ruling is required.

Conclusion

The hearing on Plaintiff Isamar Cortes Guzman's Motion to Compel Further Responses to Request for Production of Documents, Set One, is CONTINUED to November 19, 2026, at 9:30am. The joint separate statement must be filed on or before November 12, 2026. If the parties fail to file a joint separate statement by that date, the Court will presume the issues in the Motion are moot and take the matter off-calendar.